

IP03

Directive Principles and Fundamental Duties

About 2 questions a paper. Two clusters dominate: Fundamental Duties with the 42nd Amendment and the Swaran Singh Committee (2013, 2016, 2018, 2021) and DPSPs matched to Articles with the FR-versus-DPSP case line (2013, 2021, 2023). Article 39A alone came in 2018 and again in 2024.

Part IV tells the State what kind of country to build; Part IVA tells the citizen what to do. Neither is enforceable in court - and that is precisely what makes them easy exam material, because there is nothing to argue about, only Articles to match. RPSC has asked the Article-to-directive matching and the Swaran Singh Committee again and again.

DPSPs and Fundamental Duties

The frame

- Part IV, Arts. 36-51
- Borrowed from Ireland
- Art. 37 - not enforceable by any court
- But 'fundamental in the governance of the country'

Socialistic

- 38 welfare state
- 39 six directives
- 39A free legal aid
- 41 work, education, assistance
- 42 humane work, maternity
- 43 living wage
- 43A workers in management
- 47 nutrition and public health

Gandhian

- 40 village panchayats
- 43 cottage industries
- 43B co-operatives
- 46 SC/ST and weaker sections
- 47 prohibition
- 48 cow slaughter ban

Liberal-intellectual

- 44 uniform civil code
- 45 early childhood care below six
- 48 modern agriculture
- 48A environment
- 49 monuments
- 50 judiciary from executive
- 51 international peace

FR vs DPSP case line

- Champakam 1951
- Golaknath 1967
- Kesavananda 1973
- Minerva Mills 1980

Fundamental Duties

- Part IVA, Article 51A only
- 42nd Amendment 1976
- Swaran Singh Committee 1976
- Ten duties, eleventh added by 86th Amendment 2002
- Borrowed from the USSR

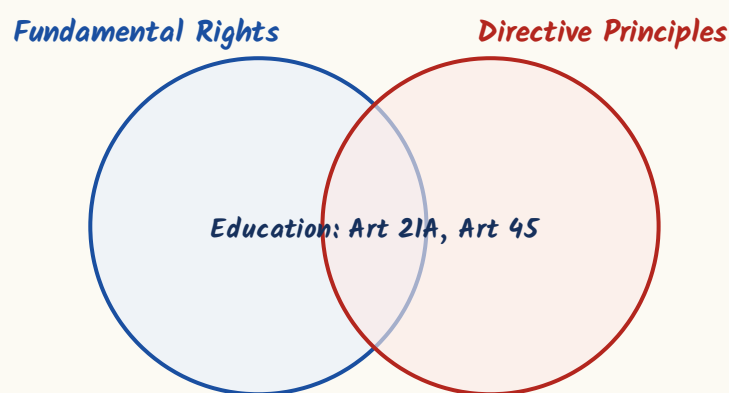
What the Directive Principles are, and why they cannot be enforced

Directive Principles of State Policy sit in Part IV, Articles 36 to 51. They are instructions to the State - Union, States, local bodies - on the kind of social and economic order to build. We took the idea from the Constitution of Ireland, which had itself picked it up from Spain. That chain of borrowing is itself an exam fact.

The key limitation is in Article 37. The Directive Principles are NOT enforceable by any court. But the same Article says they are 'fundamental in the governance of the country' and that it is the duty of the State to apply them in making laws. So: no court will enforce them, but they are not decorative either. Get the wording right - statement-based questions turn on exactly this sentence.

- Art. 36 defines 'State' for Part IV in the same terms as Article 12 does for Part III.
- Art. 37 - not enforceable by any court; fundamental in the governance of the country.
- Dr. B. R. Ambedkar called the Directive Principles a 'novel feature' of the Constitution.
- K. T. Shah dismissed them as 'pious superfluities'.
- Sir Ivor Jennings called them 'pious aspirations'.
- Granville Austin saw Part III and Part IV together as the 'conscience of the Constitution'.

Part III and Part IV - two halves of one design



Minerva Mills, 1980 - harmony between the two is part of the basic structure.

Fundamental Rights vs Directive Principles - the contrast RPSC builds statement sets on

Fundamental Rights (Part III, Arts. 12-35)	Directive Principles (Part IV, Arts. 36-51)
Justiciable - enforceable through Arts. 32 and 226	Non-justiciable - Art. 37 bars any court from enforcing them
Largely negative - they restrain the State from acting	Positive - they direct the State to act
Aim at political democracy	Aim at social and economic democracy
Drawn mainly from the American tradition	Drawn from Ireland, which took the idea from Spain
Operate on their own; no further law is needed	Need legislation before they take practical effect
Art. 32 is 'the very soul of the Constitution' - Ambedkar	Part IV is a 'novel feature' - Ambedkar; 'pious aspirations' - Jennings

TRAP

Article 37 does not say the Directive Principles are unimportant. Any statement reading 'the Directive Principles are enforceable by the courts' is false; any statement reading 'they are fundamental in the governance of the country' is true. Both sentences come from the same Article - RPSC puts them in the same question.

The socialistic Directive Principles

Laxmikanth's three-fold classification is not in the Constitution itself, but every paper uses it, so learn it. Socialistic principles aim at a welfare state - work, wages, health, legal aid. Start here because this is the biggest group.

The three-fold classification of the Directive Principles



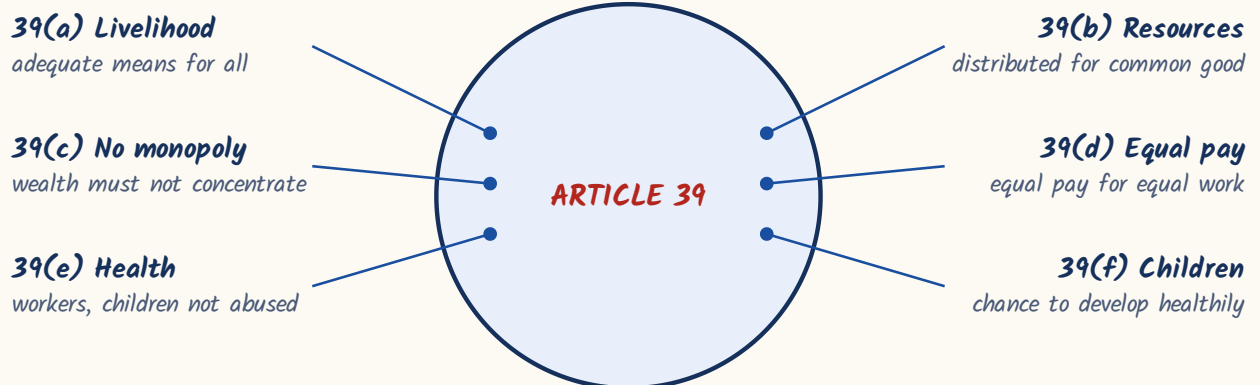
Socialistic - Arts. 38, 39, 39A, 41, 42, 43, 43A, 47

Article	Directive
Art. 38	Promote the welfare of the people by securing a social order in which justice - social, economic and political - informs all institutions
Art. 38(2)	Minimise inequalities in income, status, facilities and opportunities (added by the 44th Amendment, 1978)
Art. 39	Six directives - (a) adequate means of livelihood; (b) distribution of material resources for the common good; (c) prevention of concentration of wealth; (d) equal pay for equal work for men and women; (e) health and strength of workers and children not abused; (f) children given opportunities to develop healthily
Art. 39A	Equal justice and free legal aid (added by the 42nd Amendment, 1976)
Art. 41	Right to work, to education and to public assistance in unemployment, old age, sickness and disablement
Art. 42	Just and humane conditions of work, and maternity relief
Art. 43	Living wage, a decent standard of life, and promotion of cottage industries
Art. 43A	Participation of workers in the management of industries (42nd Amendment, 1976)
Art. 47	Raise the level of nutrition and the standard of living, improve public health, and prohibit intoxicating drinks and injurious drugs

- Article 39(d) is the equal-pay-for-equal-work clause - it is a Directive Principle, not a Fundamental Right.
- Article 39(f) was recast by the 42nd Amendment, 1976.
- Article 39A was given statutory shape by the Legal Services Authorities Act, 1987 - which created NALSA, the State and District Legal Services Authorities, and Lok Adalats.
- So when a question links free legal aid to Lok Adalats or NALSA, the Article behind it is 39A.

Read Article 39 slowly once. Its six clauses (a) to (f) supply the raw material for statement questions, and clause (b) and clause (c) - material resources for the common good, and prevention of concentration of wealth - are the two that Article 31C later singles out for special protection. Those two clause letters are worth remembering on their own.

The six clauses of Article 39



ASKED IN RAS

Asked in RAS Pre 2018 and again in RAS Pre 2024 - Article 39A, which directs the State to secure equal justice and to provide free legal aid, was inserted by the 42nd Amendment Act, 1976. Two papers, the same fact.

The Gandhian and liberal-intellectual Directive Principles

Gandhian principles carry Gandhi's programme into the Constitution - village self-government, cottage industry, uplift of the weaker sections, prohibition, cow protection. Liberal-intellectual principles carry the modernising, internationalist agenda - a uniform civil code, scientific agriculture, environment, separation of powers, world peace.

Gandhian - Arts. 40, 43, 43B, 46, 47, 48

Article	Directive
Art. 40	Organise village panchayats as units of self-government
Art. 43	Promotion of cottage industries on an individual or co-operative basis in rural areas
Art. 43B	Promote voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies (97th Amendment, 2011)
Art. 46	Promote the educational and economic interests of the Scheduled Castes, Scheduled Tribes and other weaker sections, and protect them from social injustice and exploitation
Art. 47	Prohibition of intoxicating drinks and of drugs injurious to health
Art. 48	Prohibit the slaughter of cows, calves and other milch and draught cattle

Liberal-intellectual - Arts. 44, 45, 48, 48A, 49, 50, 51

Article	Directive
Art. 44	Uniform civil code for the citizens throughout the territory of India
Art. 45	Early childhood care and education for all children until they complete the age of six years (as substituted by the 86th Amendment, 2002)
Art. 48	Organise agriculture and animal husbandry on modern and scientific lines
Art. 48A	Protect and improve the environment and safeguard the forests and wildlife of the country (42nd Amendment, 1976)
Art. 49	Protect monuments, places and objects of artistic or historic interest declared to be of national importance

Article	Directive
Art. 50	Separate the judiciary from the executive in the public services of the State
Art. 51	Promote international peace and security

- Article 51 has four limbs - promote international peace and security; maintain just and honourable relations between nations; foster respect for international law and treaty obligations; encourage settlement of international disputes by arbitration.
- Directives also exist outside Part IV: Art. 335 (claims of SCs and STs to services), Art. 350A (instruction in the mother tongue at the primary stage), Art. 351 (development of Hindi).
- Those three are Directive Principles in substance but are not counted in Part IV - a classic 'which of these is in Part IV' trap.
- Three Articles sit in two categories at once - so do not treat the classification as watertight.
- Art. 43 is socialistic (living wage) and Gandhian (cottage industries).
- Art. 47 is socialistic (nutrition and public health) and Gandhian (prohibition).
- Art. 48 is Gandhian (ban on cow slaughter) and liberal-intellectual (scientific agriculture).

ASKED IN RAS

Asked in RAS Pre 2021 and again in 2023 as a matching set - Article 39A: equal justice and free legal aid; Article 40: organisation of village panchayats; Article 44: uniform civil code; Article 48A: protection and improvement of the environment. Those four Articles are the ones RPSC keeps returning to.

CURRENT LINK

Current link, as of September 2026: Uttarakhand became the first State to bring a Uniform Civil Code into force, on 27 January 2025, under its Uniform Civil Code, Uttarakhand Act, 2024. That is Article 44 moving from paper to statute in one State, and it makes Article 44 the most likely DPSP to appear in a current-affairs-flavoured question.

Directive Principles added by amendment

Part IV is not frozen. Four amendments have added to it. This is a small, closed list, and it converts directly into a matching question - amendment to Article. Learn it as four lines.

Amendment to new Directive Principle

Amendment	What it added to Part IV
42nd Amendment, 1976	Art. 39A (free legal aid), Art. 43A (workers in management), Art. 48A (environment)
44th Amendment, 1978	Art. 38(2) - minimise inequalities in income, status, facilities and opportunities
86th Amendment, 2002	Substituted Art. 45 - early childhood care and education below the age of six
97th Amendment, 2011	Art. 43B - promotion of co-operative societies

YAAD RAKHO

Remember the 42nd Amendment's three additions by their letters - 39A, 43A, 48A. All three end in A, all three came in 1976. The 42nd Amendment also added Part IVA, the Fundamental Duties. One amendment, four things to remember.

TRAP

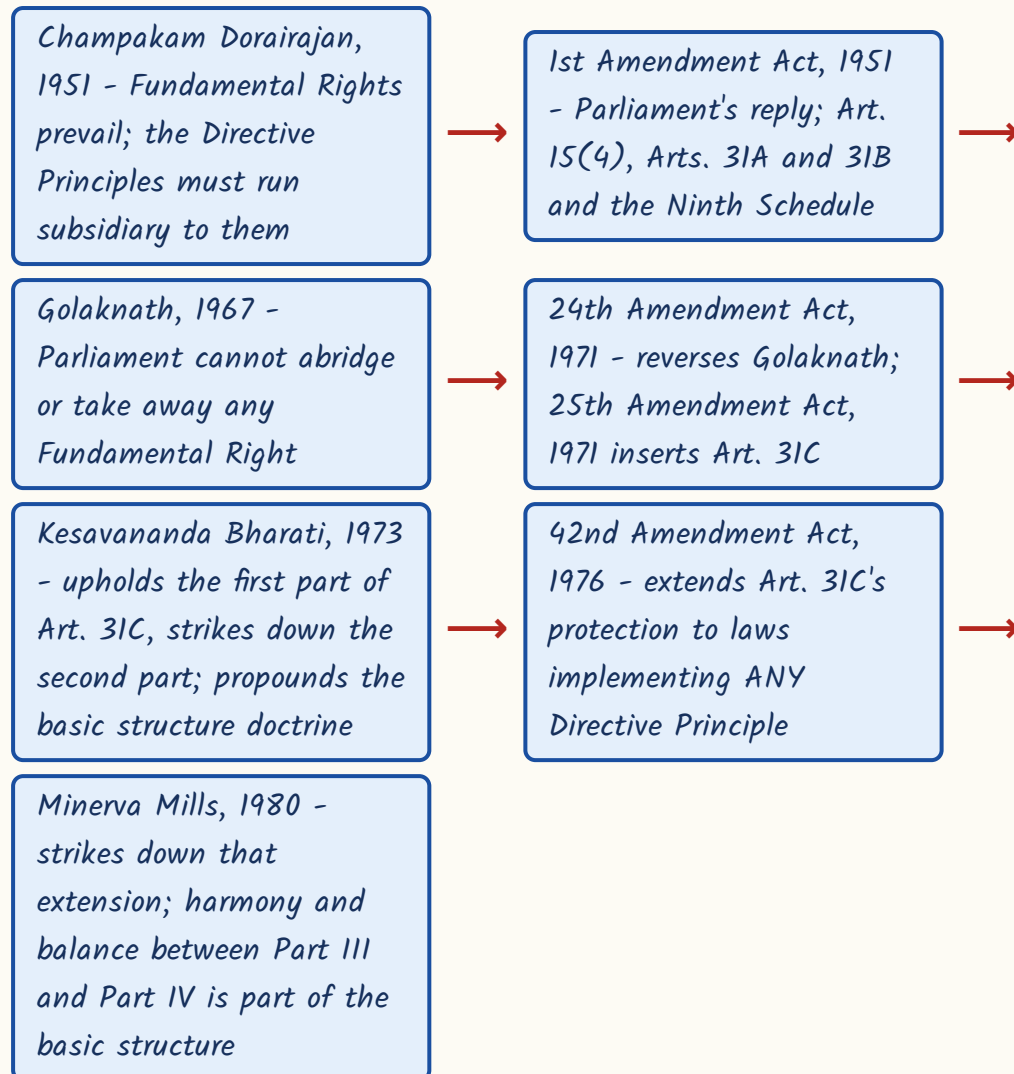
Article 38(2) is the 44th Amendment, not the 42nd. RPSC asks 'which Directive Principle was NOT inserted by the 42nd Amendment' and 38(2) is the answer. Also keep 43A (workers in the management of industries, 42nd Amendment) apart from 43B (co-operative societies, 97th Amendment).

- Article 45 no longer means free and compulsory education up to fourteen years. That job moved to Article 21A in Part III, also by the 86th Amendment, 2002.
- Article 45 now covers only children below six years - early childhood care and education.
- In *Union of India v. Rajendra N. Shah* (July 2021) the Supreme Court struck down Part IXB of the Constitution insofar as it applied to co-operative societies within a State; Article 43B itself remains intact.

Fundamental Rights versus Directive Principles – the case line

What happens when a law made to implement a Directive Principle violates a Fundamental Right? The courts answered that question four times over thirty years, and Parliament answered back with amendments each time. This back-and-forth is the most examinable story in the chapter. Learn it as a ladder, not as separate cases.

Champakam to Minerva Mills – court, then Parliament, then court



- Article 31C was inserted by the 25th Amendment Act, 1971.
- Its first part: a law giving effect to Art. 39(b) or 39(c) cannot be challenged as violating Art. 14 or Art. 19.
- Its second part barred any court from even examining whether such a law really gave effect to those directives - that is the part *Kesavananda* struck down.
- So today Art. 31C protects only laws implementing Art. 39(b) and 39(c), not all Directive Principles.
- *Champakam Dorairajan* led directly to the 1st Amendment Act, 1951.

ASKED IN RAS

Asked in RAS Pre 2023 as a matching set - Champakam Dorairajan (1951): Directive Principles must run subsidiary to the Fundamental Rights; Golaknath (1967): Parliament cannot abridge or take away a Fundamental Right; Kesavananda Bharati (1973): basic structure doctrine and the second part of Article 31C held unconstitutional; Minerva Mills (1980): harmony and balance between Part III and Part IV is part of the basic structure. Learn the four principles attached to the four names.

- Minerva Mills did NOT strike down the whole of Article 31C.
- It struck down only the 42nd Amendment's extension of Art. 31C to laws implementing any Directive Principle.
- The original Art. 31C, covering Art. 39(b) and 39(c), survives.
- Minerva Mills also struck down the 42nd Amendment's attempt to give Parliament unlimited amending power.

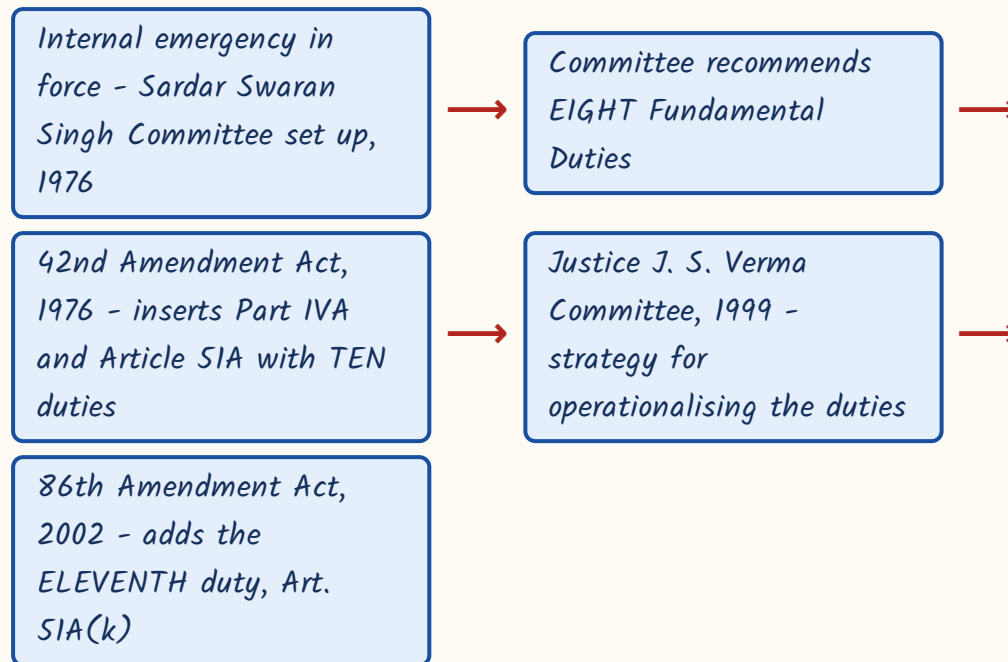
CURRENT LINK

Current link, as of September 2026: on 5 November 2024 a nine-judge bench of the Supreme Court in *Property Owners Association v. State of Maharashtra* held, by a majority, that not every privately owned resource is a 'material resource of the community' under Article 39(b) - it depends on the nature and scarcity of the resource and its effect on the community. The bench also confirmed that Article 31C as upheld in *Kesavananda Bharati* survives. This is the living sequel to the Champakam-to-Minerva Mills story, and Article 39(b) is now a current-affairs Article.

Fundamental Duties - where they came from

The original Constitution had rights for the citizen but no duties. That gap was filled in 1976, during the internal emergency, on the recommendation of the Sardar Swaran Singh Committee. The idea itself was borrowed from the Constitution of the erstwhile USSR - the only constitution then providing for citizens' duties alongside rights.

How Part IVA came into being



- Fundamental Duties are in Part IVA, and Part IVA has just one Article - Article 51A.
- The Swaran Singh Committee also recommended a penalty for non-compliance and a duty to pay taxes. Neither was accepted.
- So there is no duty to pay taxes in Article 51A - a very frequently used wrong option.
- The Verma Committee (1999) listed existing laws that already enforce these duties: the Prevention of Insults to National Honour Act 1971, the Protection of Civil Rights Act 1955, the Wildlife (Protection) Act 1972 and the Representation of the People Act 1951.

ASKED IN RAS

Asked in RAS Pre 2018 and again in 2021 - the Fundamental Duties were added by the 42nd Amendment Act, 1976. Asked in RAS Pre 2016 and again in 2021 - they were incorporated on the recommendation of the Sardar Swaran Singh Committee. Two facts, four papers.

ASKED IN RAS

Asked in RAS Pre 2018 and 2021 as a statement set on the Swaran Singh Committee - it was constituted in 1976 during the internal emergency (true); it recommended eleven duties (FALSE, it recommended eight); it recommended a duty to pay taxes (true, but that recommendation was not accepted). The examiner is testing eight-versus-ten-versus-eleven.

TRAP

Three numbers, three stages. Swaran Singh recommended EIGHT. The 42nd Amendment, 1976 put in TEN. The 86th Amendment, 2002 made it ELEVEN. Never write that the Committee recommended ten or eleven.

The eleven duties under Article 51A

Learn the eleven duties by their clause letters, because RPSC asks 'which Fundamental Duty is contained in Article 51A(h)' straight up. The (h) clause - scientific temper - is the one asked most often.

Article 51A(a) to (k)

Clause	Duty
51A(a)	Abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem
51A(b)	Cherish and follow the noble ideals of the freedom struggle

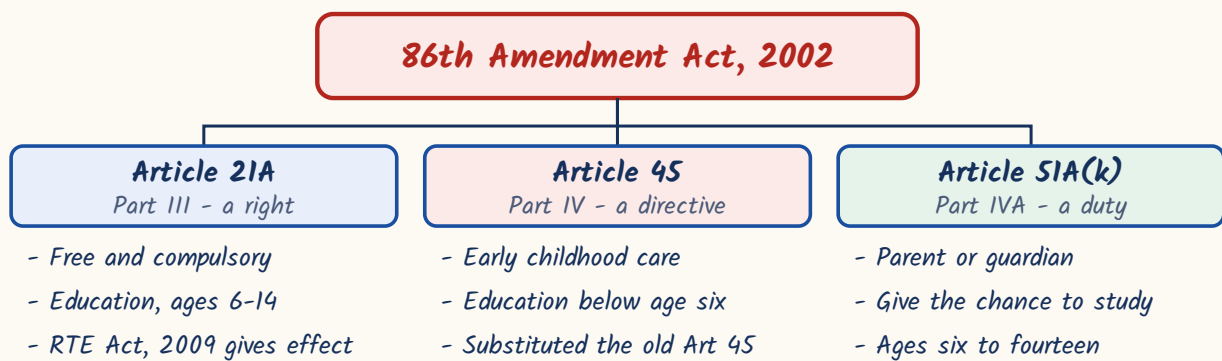
Clause	Duty
SIA(c)	Uphold and protect the sovereignty, unity and integrity of India
SIA(d)	Defend the country and render national service when called upon
SIA(e)	Promote harmony and the spirit of common brotherhood; renounce practices derogatory to the dignity of women
SIA(f)	Value and preserve the rich heritage of our composite culture
SIA(g)	Protect and improve the natural environment and have compassion for living creatures
SIA(h)	Develop the scientific temper, humanism and the spirit of inquiry and reform
SIA(i)	Safeguard public property and abjure violence
SIA(j)	Strive towards excellence in all spheres of individual and collective activity
SIA(k)	A parent or guardian to provide opportunities for education to his child or ward between six and fourteen years (86th Amendment, 2002)

- Fundamental Duties are non-justiciable - no writ lies to enforce them.
- They apply only to CITIZENS, not to foreigners. Contrast most Fundamental Rights, which cover foreigners too.
- The eleventh duty, SIA(k), pairs with Article 21A and Article 45 - all three came from the 86th Amendment, 2002, and all three concern the same age band.
- SIA(g) - environment - pairs with Article 48A. One is a duty of the citizen, the other a directive to the State.

YAAD RAKHO

Remember the 86th Amendment as a set of three: Art. 21A (right of the child, 6-14), Art. 45 (State's duty, below 6), Art. SIA(k) (parent's duty, 6-14). One amendment, three Articles, one theme - education.

The 86th Amendment - one theme in three Parts



REVISION RECAP

1. DPSPs = Part IV, Arts. 36-51, borrowed from Ireland (Ireland took the idea from Spain).
2. Art. 36 defines 'State' as Art. 12 does; Art. 37 makes the DPSPs non-enforceable but fundamental in the governance of the country.
3. Ambedkar - 'novel feature'; K. T. Shah - 'pious superfluities'; Jennings - 'pious aspirations'; Austin - Parts III and IV are the 'conscience of the Constitution'.
4. Socialistic: 38, 39, 39A, 41, 42, 43, 43A, 47. Gandhian: 40, 43, 43B, 46, 47, 48. Liberal-intellectual: 44, 45, 48, 48A, 49, 50, 51.
5. 39(d) equal pay for equal work; 39A free legal aid and the Legal Services Authorities Act 1987 (NALSA, Lok Adalats).
6. 40 panchayats, 43B co-operatives, 44 uniform civil code, 46 SC/ST and weaker sections, 47 nutrition and prohibition, 48 cattle and scientific agriculture.
7. 48A environment, 49 monuments, 50 judiciary separate from executive, 51 international peace and arbitration of disputes.
8. Art. 45 today = early childhood care and education below six years; the 6-14 education right moved to Art. 21A.
9. Directives outside Part IV: Art. 335, Art. 350A, Art. 351.
10. New DPSPs: 42nd Amendment 1976 gave 39A, 43A and 48A; 44th gave 38(2); 86th substituted 45; 97th gave 43B.
11. Article 31C came from the 25th Amendment, 1971 and shields laws implementing Art. 39(b) and 39(c).
12. Case ladder: Champakam 1951 (FRs prevail) - Golaknath 1967 (no abridgement of FRs) - Kesavananda 1973 (basic structure; 31C's second part struck down) - Minerva Mills 1980 (harmony and balance).

13. Fundamental Duties = Part IVA, the single Article 51A, added by the 42nd Amendment, 1976; idea borrowed from the USSR.
14. Sardar Swaran Singh Committee 1976 recommended eight duties; the 42nd Amendment enacted ten; the 86th Amendment 2002 added the eleventh.
15. Rejected recommendations: a penalty for non-compliance, and a duty to pay taxes.
16. 51A(g) environment, 51A(h) scientific temper, 51A(i) public property and non-violence, 51A(k) parent's duty to educate a child aged 6-14.
17. Fundamental Duties are non-justiciable and bind citizens only.
18. Justice J. S. Verma Committee, 1999 - strategy for operationalising the duties; cited the National Honour Act 1971, Protection of Civil Rights Act 1955, Wildlife (Protection) Act 1972, RP Act 1951.
19. Union of India v. Rajendra N. Shah (2021) - Part IXB struck down for intra-State co-operative societies; Art. 43B survives.
20. The 86th Amendment triple: Art. 21A, Art. 45 and Art. 51A(k) - one amendment, three Articles, one subject.